

In R 4/12 the Enlarged Board held that oral remarks made by a chairman directly before a decision is pronounced do not form part of the reasons that must reflect, within certain limits, a party's arguments.

In R 8/15 the Enlarged Board held that Art. 113(1) EPC must be interpreted more narrowly than R 102(g) EPC. The latter requires a board to give reasons for its decision, but infringement thereof is not as such a ground for review. Reasons may be incomplete, but as long as they permit the conclusion that the board, in the course of the appeal proceedings, substantively assessed a certain point that it found it to be relevant, there is no violation of Art. 113(1) EPC (see also R 2/18). Confirming the approach taken in R 8/15, the Enlarged Board held in R 10/18 that a board is presumed to have taken into account a party's submissions that it did not address in the reasons for its decision. An exception may apply if there are indications to the contrary, e.g. if a board does not address in the reasons for its decision submissions by a party that, on an objective basis, are decisive for the outcome of the case, or dismisses such submissions without first assessing them as to their correctness.

Decisions of boards of appeal are open only to review but not to appeal, and thus not covered by R 111(2) EPC which requires that decisions which are open to appeal be reasoned (R 6/11; see, however, also R 12/10; see also in this chapter V.B.3.4.2).

b) No obligation to consider each and every argument

It is not necessary to consider each and every argument of the parties in detail in a decision (R 19/10, R 17/11, R 6/12, R 15/12, R 2/13, R 19/12 of 12 April 2016, R 5/15).

In R 13/12 the Enlarged Board stated that while the boards have an obligation to discuss in their decisions issues and arguments to the extent that they are relevant for the decision, they may disregard irrelevant arguments (see also R 21/10). In R 16/14 the Enlarged Board stated that not explicitly addressing specific points which, in the deciding organs view, did not have to be addressed in order to arrive at an understandable decision did not mean that such points are ignored. In R 8/16 the Enlarged Board stated that not addressing specific arguments in the decision was not necessarily a fundamental violation of the petitioner's right to be heard.

In R 19/12 of 12 April 2016 the Enlarged Board stated that the allegedly insufficient consideration, by a board, of arguments concerning a procedural defect before the department of first instance could only constitute a fundamental violation of the right to be heard when the alleged procedural defect impacted on the decision at first instance.

In R 8/17 the Enlarged Board held that it would have been highly questionable and contradictory for the board to have dealt in substance with an argument of a party in the written reasons after it had not allowed a discussion on it in the oral proceedings.

4.3.11 Parties' obligation to know the case law, references to decisions

Even under the assumption that the information given by a technical board of appeal on a decision of the Enlarged Board of Appeal was unclear, parties are deemed to know the case law, at least when represented by an authorised representative. Thus, a party cannot plead lack of such knowledge as an excuse (R 4/09).

In R 17/09 the Enlarged Board held that reference to decisions in a decision, even decisions not cited to the party earlier in writing or at the oral proceedings, could not constitute a fundamental violation of the right to be heard.

In R 9/14 the Enlarged Board held that a qualified professional representative can be assumed to be familiar with the analytical sequence of the problem-solution approach. Special guidance from the board is not necessary. Likewise in R 5/16 the Enlarged Board found that a party to appeal proceedings and its professional representative should be aware of the methodology established in the case law of the boards of appeal for examining inventive step and should be prepared to submit its relevant arguments in this respect.

In R 4/16 the Enlarged Board held that the boards might sometimes be obliged to back up a reference they made to established case law, but the onus could not be on them always to seek out specific decisions that a party had not cited in support of a position it was arguing. Were a board to do so in opposition proceedings, that would amount to its making the case for one of the parties itself, to the detriment of the other party and contrary to its duty of impartiality.

4.3.12 No right to be heard separately on all requests

A party has no absolute right to be heard separately on each and every one of its auxiliary requests. The right to be heard is satisfied if a party had the opportunity to comment on the grounds for a decision on the main request, and the remaining requests are not allowed on the same grounds (R 6/11; see also R 11/08, R 3/12, R 14/10, R 2/14 of 22 April 2016, point 11 of the Reasons).

4.3.13 No right to a further hearing at first instance

In R 9/10 the Enlarged Board held that there is no right to a remittal, only a discretion which may or may not be exercised in a party's favour under Art. 111(1) EPC and which is the subject of considerable case-law. If there is no right to a remittal, there is no right to a further hearing before the first instance. See also R 12/09 of 15 January 2010, R 2/16, R 7/16.

In R 7/16 the board of appeal found that the decision of the opposition division presented a fundamental deficiency, but decided not to remit the case to the opposition division, exercising its discretion under Art. 11 RPBA 2007. The petition was based upon an alleged insufficiency of reasoning in the written decision. The Enlarged Board commented that a detailed discussion of the substantive issues before a decision on the remittal would have

rendered any remittal pointless since the first instance would have been bound by the considerations of the board of appeal or could have expected that its decision would be reversed if it was not in line with the considerations of the board of appeal. The refusal of a remittal cannot per se be a ground for allowing a petition.

4.3.14 No right to a referral under Article 112 EPC

The right to be heard is not infringed if a board decides, after having heard the parties, not to refer a particular question to the Enlarged Board of Appeal (R. 8/11; see also R. 17/14).

4.3.15 No right to a communication; communication allegedly misleading

The communication of a board, if any, is a means at the board's disposal to streamline the appeal proceedings and above all the oral proceedings. Not issuing a communication does not constitute a violation of the right to be heard (R. 16/09). In R. 14/12 the Enlarged Board stated that if a board decided not to issue a communication, it could be assumed that it regarded the whole file as relevant for discussion at the oral proceedings.

In R. 3/09 the Enlarged Board noted that discrepancies between a board's provisional opinion as expressed in a communication preparing oral proceedings and its analysis in its final decision was in itself not a fundamental procedural defect.

In R. 3/16 the Enlarged Board held that a petitioner is itself responsible for not having attended the oral proceedings where the alleged ambiguity of a communication could have been dispelled. A petitioner is free not to attend the oral proceedings but this choice is at its own risk since a board is never obliged to postpone oral proceedings only because a party does not appear, provided that it bases its decision on the facts and arguments on file (R. 115 EPC and Art. 15(3) RPBA 2020). See also chapter III.B.2.7.3 "Non-attendance at oral proceedings before the boards – Article 15(3) RPBA 2020".

4.3.16 Late-filed submissions – boards' discretion under Article 13 RPBA 2007

In R. 16/09 the Enlarged Board saw no legal basis for an obligation to hear a party on substantive issues before deciding on the admissibility of a proposed auxiliary request. In the proceedings under review the petitioner had expressed its intention to present an auxiliary request in the closing stages of the oral proceedings without having prepared a set of amended claims. The Enlarged Board stated that requiring a board to always invite a party to supply a text of amended claims before a decision on the admissibility of a proposed auxiliary request is taken, would deprive it of the discretion explicitly provided by Art. 13 RPBA 2007.

In R. 5/11 the Enlarged Board held that the mere fact that a board takes into account the lateness of an auxiliary request when exercising its discretion under Art. 13 RPBA 2007 – although it did not explicitly raise this issue in the oral proceedings – does not infringe the right to be heard.

4.3.17 Alleged violation of Article 113(2) EPC

Art. 113(2) EPC does not give any right to an applicant in the sense that the EPO is in any way bound to consider a request for amendment put forward by the applicant. The effect of this provision is merely to forbid the EPO from considering and deciding upon any text of an application other than that "submitted to it, or agreed, by the applicant or proprietor" (G 7/93, OJ 1994, 775). See also R 10/08, R 11/11).

In R 10/08 the Enlarged Board stated, citing G 12/91 (OJ 1994, 285), that the moment a decision is pronounced is not the last moment at which parties may still make submissions: "This must be done at an earlier point in the proceedings to allow the decision-making department time to deliberate and then to issue its decision based on the parties submissions". Even if the debate could be re-opened in exceptional cases, the parties have to expect that, as long as it is not re-opened, a decision can be given after deliberation.

In R 8/16 the petitioner alleged a fundamental breach of its right to be heard partially on the basis that the decision of the board did not explain what had happened to requests withdrawn and replaced by the petitioner before the final decision of the board. The Enlarged Board held that giving reasons on withdrawn requests might well have given rise to an objection under Art. 113(2) EPC.

4.3.18 Further examples of unsuccessful petitions

In R 17/13 the Enlarged Board stated that if a party informed the board that it would not be attending the oral proceedings and the case was then **decided in the party's absence**, the party's right to be heard was not infringed.

In R 16/12 the Enlarged Board found that the **principle of efficiency** required a board of appeal to focus on what is relevant for the decision. If a case can be decided on the basis of sufficiency of disclosure, discussing any other ground such as inventive step would concern an obiter dictum.

In R 4/12 the Enlarged Board stated that the assertion that the petitioner learned during the break in the oral proceedings, from a **third party** who had presented himself as the examiner who had taken the decision, that its appeal was going to be dismissed, had no bearing on an alleged infringement of the right to be heard.

In R 21/09 the Enlarged Board found that **national judgments and documents submitted in national proceedings** may be introduced into appeal proceedings. Accepting such documents as evidence – to be freely assessed by the board – does not, as such, violate the right to be heard.

In R 10/08 the Enlarged Board stated that if the **chairman deviated from the procedure provided for in Art. 15(5) RPBA 2007** by not stating the requests before closing the debate, this omission had not affected the petitioner's right to be heard under Art. 113(1) EPC in the

case in hand, in that it had had sufficient opportunity to present his comments on the grounds and evidence on which the decision of the board of appeal was based.

In R.3/08 (referring to G.4/95, OJ 1996, 412) the Enlarged Board stated that oral **submissions made by an accompanying person** were under the discretionary control of the EPO. The Enlarged Board found that the denial of a request – made shortly before the oral proceedings – for an accompanying person to present oral submissions (requiring interpretation) was not a fundamental violation of Art. 113(1) EPC.

4.3.19 Successful petitions under Article 112a(2)(c) EPC

In R.7/09 the petition was allowed, as the EPO was not able to establish delivery of the opponent's statement of grounds of appeal to the patentee and subsequent petitioner. The petitioner had therefore been **unaware of the grounds** on which the decision of the board of appeal revoking his patent was based. The fact that the statement of grounds became available to the public and, thus, also to the petitioner by way of electronic file inspection had no bearing on the right of parties to be individually and specifically informed by the Office.

Similarly, in R.4/17 the petitioner argued that it had no record of ever having received the notice of appeal or statement of grounds for appeal and that it had **no knowledge of the existence of the appeal** until it received the decision in the appeal case. The Office was not able to establish that the critical communications had reached their destination, as required under R.126(2) EPC. The Enlarged Board held that parties must be able to rely on the EPO complying with the relevant provisions of the EPC and, at least for the purposes of Art. 113(1) EPC, they and their representatives have no duty to monitor the proceedings themselves by regularly inspecting the electronic file. It cannot be expected that the respondent should prove a negative, i.e. the non-receipt of a letter, or provide a plausible explanation for non-receipt (see also in this chapter V.B.3.12. "Burden of Proof").

In the inter partes proceedings under review in R.3/10 the chairman had stated after the parties' submissions on novelty "that the Board will decide on patentability". The board then closed the debate and held that the main request was novel but lacked an inventive step. According to the Enlarged Board, the term "patentability" covered a variety of potential objections and the chairman could not have meant to address all of them. Thus, the **petitioner had no reason to assume that the board's decision would address more than what had been previously discussed**, i.e. novelty. As the petitioner had not been given the opportunity to comment on inventive step, the Enlarged Board allowed the petition (see also chapter III.B.2.5.1 "Decision could not be expected").

In the ex parte proceedings under review in R.15/11 the board had held that the request did not comply with the requirements of Art. 84 EPC. According to the Enlarged Board, there was **no explicit or implicit indication in the file** of the appeal procedure from which it could be derived **that a possible lack of clarity was at any time discussed** with the petitioner or that at least an objection was raised in this respect. The Enlarged Board allowed the petition and held that a minimum prerequisite for an opportunity to comment on a specific ground (here: Art. 84 EPC) was that the petitioner was aware or could have